Harris County District Court

Cause No. 2024-CV-0021

Jodi Campos, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	May 8, 2024
Plaintiff's counsel:	Tina King, Beck & Miller Injury Lawyers

PARTIES

Plaintiff Jodi Campos is an individual residing in Texas who was the driver and sole occupant of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write motor vehicle policies in the State of Texas, which issued the policy of insurance under which Plaintiff seeks benefits and against which this action is brought.

FACTS

On April 5, 2023, Plaintiff was lawfully stopped in traffic at a controlled intersection in Pearland, Texas, when a vehicle operated by an insured of Defendant's policyholder struck the rear of Plaintiff's vehicle with considerable force. The impact pushed Plaintiff's vehicle forward and caused it to strike the vehicle ahead. Plaintiff reported the collision to the police and to Defendant promptly. Plaintiff's vehicle sustained structural and bumper damage requiring towing and repair. Plaintiff was transported from the scene for evaluation and was later diagnosed with injuries to the neck and lower back.

NEGLIGENCE

The at-fault driver owed a duty to Plaintiff to operate a motor vehicle with reasonable care, to maintain a proper lookout, to control speed, and to keep a safe distance from vehicles ahead. The at-fault driver breached that duty by failnig to stop in time and striking Plaintiff's stopped vehicle. Under Texas law, Defendant is obligated under the terms of its policy to pay covered damages arising from the at-fault driver's negligence, and Defendant has failed to adequately evaluate and pay Plaintiff's claim in good faith.

DAMAGES

As a direct result of the collision, Plaintiff suffered neck and back strain, pain, stiffness, limited range of motion, and headaches. Plaintiff has incurred medical expenses for emergency care, imaging, physical therapy, and follow-up treatment, and will likely require further care. Plaintiff has also lost wages and suffered diminished capacity to work and perform daily activities. Plaintiff seeks recovery of economic and non-economic damages in the amount of $241,000.00, together with prejudgment and postjudgment interest, court costs, and such other relief as the Court deems just.